

25STCV20127 25STCV20127

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Case Number: 25STCV20127 Hearing Date: August 3, 2026 Dept: 307

15 TENTATIVE RULING 9:00 a.m., Monday, August 3, 2026

GREER

WILLIAMS v. FCA US, LLC, et al. [25STCV20127]

MOTION

FOR SUMMARY JUDGMENT, OR ALTERNATIVELY, SUMMARY ADJUDICATION AS TO THE FIRST
AMENDED COMPLAINT OF DEFENDANT FCA US, LLC

TIMELINE:

Lemon law action

7/6/2019:

Plaintiff Greer Williams ("Plaintiff") purchased a pre-owned 2019 Jeep

Cherokee

(the "Vehicle") from a third-party dealership, Bob Baker Automotive Inc.

("BBA"), pursuant to a Retail Installment Sale Contract (the "Sale Contract").

(Tremonti Decl., ¶ 5, Exh. 2; Sheridan Decl., ¶ 6, Exh. 3; Williams Decl., ¶¶

3-4.) At the time of the sale, the Vehicle's odometer registered 17,382 miles.

(Tremonti Decl., ¶ 2, Exh. 2.) While the Vehicle was manufactured by Defendant

FCA US, LLC ("FCA"), FCA was not a party to the Sale Contract. (Id. ¶ 3;

Tremonti Decl., ¶ 2, Exh. 2.) However, in connection with the sale, FCA issued to

Plaintiff a written warranty for the Vehicle. (Id. ¶ 4, Exh. 1 [FAC], at

Exh. A; Sheridan Decl., ¶ 6, Exh. 3.)

10/21/2020:

Plaintiff presented the Vehicle to another dealership for a jump

start,
and the Vehicle's battery was replaced. (Williams Decl., ¶ 8, Exh. 1.)

6/11/2021:

Plaintiff presented the Vehicle to the dealership for concerns

related

to the Vehicle's transmission and unspecified electronic issues. (Williams Decl., ¶ 9.) Although the dealership reprogrammed the transmission control modules, Plaintiff continued to experience transmission issues after the repair. (Ibid.)

7/27/2021:

Plaintiff presented the Vehicle to the dealership for repairs related

to the

radio and navigation system, and the dealership replaced the radio. (Williams Decl., ¶ 10.)

2/14/2022:

Plaintiff presented the Vehicle to the dealership because it "felt

jumpy

when making sharp turns," and the dealership diagnosed a rear differential problem, which was ultimately replaced on 3/17/2022. (Williams Decl., ¶ 11.)

6/30/2025:

Plaintiff filed the Complaint. The operative First Amended

Complaint

("FAC"), filed 10/27/2025, alleges causes of action for: 1. 1. 1.

1. 1. 1.

1.

Violation

of Civil Code § 1793.2, subd. (d) 1. 1. 1.

2.

Violation
of Civil Code § 1793.2, subd. (b) ۞۞۞

3.

Violation
of Civil Code § 1793.2, subd. (a)(3) ۞۞۞

4.

Breach
of the Implied Warranty of Merchantability ۞۞۞

5.

Negligent
Repair

6.

Fraudulent
Inducement-Concealment ۞۞۞

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1/5/2026:

The Court held a hearing on FCA's demurrer with motion to strike

as to

the FAC. The Court sustained FCA's demurrer to the 4th cause of action without leave to amend and sustained FCA's demurrer to the 6th cause of action with leave to amend. The Court also granted FCA's motion to strike punitive damages. Plaintiff did not file an amended complaint. Thus, the only remaining claims at issue are the first through third causes of action for violations of the Song-Beverly Act ("SBA").

5/12/2026:

FCA files this Motion for Summary Judgment/Adjudication, followed

by

Plaintiff's Opposition (7/14/2026) and FCA's Reply (7/23/2026). ۞

TENTATIVE

RULING: MOTION FOR SUMMARY JUDGMENT OF DEFENDANT FCA US, LLC is GRANTED.

I. MOTION

FOR SUMMARY JUDGMENT

A.

1st

Cause of Action: Violation of Civ. Code § 1793.2, subd. (d) — GRANTED

Plaintiff

fails to raise a triable dispute of material fact with respect to her first cause of action. The California Supreme Court decision in *Rodriguez v. FCA US LLC*, (2024) 17 Cal.5th 189 (*Rodriguez*) is controlling here. In *Rodriguez*, the plaintiffs purchased a vehicle from a used car dealer. (*Id.* at p. 196.) The used vehicle came with an unexpired five-year/100,000-mile powertrain warranty from the manufacturer, FCA, that remained in effect at the time of the purchase. (*Ibid.*) While the warranty was in effect, the plaintiffs experienced problems with the vehicle's engine. (*Ibid.*) The plaintiffs filed a lawsuit against FCA for violating the SBA's refund-or-replace provision. (*Ibid.*) The trial court granted summary judgment in FCA's favor on the grounds that the SBA's refund-or-replace remedy only applies to a "new motor vehicle" within the meaning of the SBA. (*Ibid.*) The higher courts affirmed.

As the

California Supreme Court explained, Civil Code § 1793.22, subd.

(e)(2) "defines 'new motor vehicle' to

include a new vehicle 'bought or used primarily for personal' purposes

as well as 'a dealer-owned vehicle and a 'demonstrator' or other motor vehicle sold with a manufacturer's new car warranty.'" (*Rodriguez*, supra, 17 Cal.5th at

p. 195, italics added.) "This text makes clear that certain used cars — 'a

dealer-owned vehicle and a 'demonstrator' or other motor vehicle sold with a

manufacturer's new car warranty' — qualify as 'new

motor vehicles' for purposes of the statute." (*Id.*

at p. 198.) "As the Court of Appeal explained, 'What

makes these vehicles unique is that even though they aren't technically new,

manufacturers (or their dealer-representatives) treat them as such upon sale by providing the same type of manufacturer's warranty that

accompany new cars.'" (*Id.*,

italics added.) "In other words, they are vehicles for which a

new car warranty “was issued with the sale.” (Ibid.) Thus, the Court confirmed that “a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a motor vehicle sold with a manufacturer’s new car warranty” under section 1793.22, subdivision (e)(2)’s definition of “new motor vehicle” unless the new car warranty was issued with the sale.” (Id. at p. 196.)

Here,

FCA submits a copy of the Sale Contract governing the transaction between Plaintiff and BBA. (Tremonti Decl., ¶ 5, Exh. 2.) Plaintiff does not dispute that this contract is a true and correct copy of the agreement governing the sale of her Vehicle. The Sale Contract expressly indicates that the Vehicle sold to Plaintiff was “used.” (Ibid.) It is further undisputed that the Vehicle was originally purchased from another dealership in June 2018 and was used as an independent rental vehicle before Plaintiff ultimately purchased the Vehicle. (Sheridan Decl., ¶ 4, Exh. 3.) Plaintiff’s contention that the Vehicle was given a Certified Pre-Owned (“CPO”) status does not alter the fact that the Vehicle was used. (Williams Decl., ¶¶ 3-4.)

Further,

the Rodriguez decision demonstrates that the critical distinguishing fact for determining whether Plaintiff’s claims fall under the scope of Civ. Code § 1793.2 is whether the warranty issued by FCA in connection with her Vehicle purchase was a “manufacturer’s new vehicle warranty” first issued at the time of the sale as opposed to a preexisting, unexpired vehicle warranty issued during a prior sale. (Rodriguez, *supra*, 17 Cal.5th at p. 196, italics added.) The decision in *Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334 (Kiluk) is consistent with the Rodriguez reasoning. Kiluk involved the sale of a CPO vehicle which was accompanied by an additional used vehicle warranty issued by the defendant manufacturer in connection with the sale. (Id. at p. 336.) A jury found the manufacturer was liable under the SBA for breach of express and implied warranties. (Ibid.) In other words, Kiluk demonstrates that a vehicle’s CPO status does not preclude the application of the SBA where a new or additional vehicle warranty is issued by the manufacturer in connection with the CPO vehicle’s purchase. Thus, although Plaintiff cannot show that she purchased the Vehicle new, the central issue here is whether FCA first issued an additional “new vehicle warranty” in connection with her

purchase from BBA.

In this

case, Plaintiff alleges that she “entered into a warranty contract” with FCA on July 6, 2019. (FAC, ¶ 7.) A copy of the written warranty is attached as Exhibit A to the FAC. (Id., Exh. A.) The written warranty provides a Basic Limited Warranty to any purchaser of the Vehicle, which “lasts for 36 months from the date it begins or for 36,000 miles on the odometer, whichever occurs first” (subject to certain exceptions, not applicable here). (Id. at pp. 5-6.) The written warranty also includes a Powertrain Limited Warranty to any purchaser of the Vehicle, which “lasts for up to five years or 60,000 miles on the odometer, whichever occurs first.” (Id. at p. 9.) Critically, there is no indication on the face of the warranty that it was a new CPO warranty first issued in connection with Plaintiff’s purchase of the Vehicle, or that the warranty was exclusively intended to provide coverage for a CPO vehicle (as opposed to a new vehicle). (Ibid.) Indeed, the warranty itself characterizes the Powertrain Limited Warranty as a “new vehicle limited warranty” and references the maintenance and operation of “your new vehicle.” (Id. at pp. 10, 28.) Further, Plaintiff does not allege that the warranty was newly issued to her in connection with the sale, as opposed to merely receiving the pre-existing warranty contract from the previous owner. (See FAC, generally.) Based on Plaintiff’s allegations concerning the warranty and the specific language of the written warranty, FCA infers that Plaintiff only received the remaining portions of the Vehicle’s original manufacturer’s warranties, which were issued on the date of the original new vehicle purchase in June 2018. (Tremonti Decl., ¶ 4, Exh. 1 [FAC], Exh. A; see Sheridan Decl., ¶ 6, Exh. 3 [reflecting the original purchase on June 13, 2018].) The Court finds that this evidence is sufficient to overcome FCA’s moving burden. Thus, the burden shifts to Plaintiff to raise a triable issue of material fact pertaining to whether FCA issued an additional “manufacturer’s new vehicle warranty” in connection with Plaintiff’s purchase.

Plaintiff

fails to overcome this burden, as she has not produced sufficient evidence that a newly issued CPO warranty exists. First, Plaintiff declares that she “understood the Vehicle to be backed by manufacturer warranty protection specific to its [CPO] status” and that “the Vehicle’s [CPO] warranty coverage was an important part of [her] decision to purchase it.” (Williams Decl., ¶ 4.) However, Plaintiff fails to produce any written warranty document reflecting

that she received an updated or additional warranty first issued in connection with Plaintiff's purchase. Plaintiff's mere speculation or belief that she received a warranty specific to the Vehicle's CPO status is insufficient to raise a triable factual dispute where she offers no documentary evidence to demonstrate the terms of the unidentified additional warranty contract. Second, Plaintiff submits a copy of FCA's New Customer Assistance Inquiry Record (CAIR), which contains the following service note in the "case comments" dated 10/17/2024: "Certified pre-owned limited warranty 7 years/100,000 miles." (Lister Decl. ¶ 4, Exh. 2, at p. 1058.) Plaintiff characterizes this service note at admission that the Vehicle was sold as a CPO vehicle but fails to conclusively demonstrate how this isolated service comment confirms the existence of an additional "new vehicle warranty" first issued in connection with the sale, let alone its essential terms. (Lister Decl. ¶ 4.) Tellingly, Plaintiff neither offers any explanation as to why she has not produced a copy of her purported CPO-specific warranty, nor does Plaintiff request additional time for discovery of such a document. At minimum, Plaintiff's evidence only further confirms that the written warranty attached to the face of the FAC is not a "new vehicle warranty" first issued at the time of the sale of the Vehicle to Plaintiff.

Even

assuming that a hypothetical CPO warranty (which is not in evidence) did exist, Plaintiff fails to offer any legal authority for her position that the mere existence of a CPO warranty (devoid of any other factual context) is sufficient to bring a used Vehicle within the scope of the relevant SBA provisions. By contrast, FCA relies on various federal authorities (applying California law) which suggest that a CPO vehicle warranty does not constitute a "new vehicle warranty" for purposes of the SBA. (Rep., at p. 3.) While these authorities are not binding, they are persuasive in that they provide a framework for interpreting Rodriguez and the application of California's SBA. (See e.g. Dubrosky v. American Honda Motor Co., Inc. (C.D. Cal., Aug. 13, 2025, No. 2:24-CV-09153-HDV-AS) 2025 WL 2451031, at *9 ["the plaintiff] does not allege that Honda issued him a new car warranty with the sale of his certified pre-owned vehicle. Plaintiffs fail to adduce any authority indicating that a certified pre-owned warranty constitutes "a new car warranty[.].")

Accordingly,

the Court concludes that Plaintiff fails to overcome her responsive burden of

raising a triable factual dispute as to whether the Vehicle constitutes a “new motor vehicle” under the meaning of the SBA.

B.

2nd

and 3rd Causes of Action: Violation of Civ. Code § 1793.2, subds. (b) and (a)(3) and Prayer for Civil Penalties — GRANTED

Plaintiff

also fails to raise a triable dispute of material fact with respect to her second and third causes of action. FCA argues that the above analysis under the Rodriguez precedent also extends to Plaintiff’s claim under Civ. Code § 1793.2, subd. (b). (Mot., at p. 9.) The same logic can be extended to Plaintiff’s claim under Civ. Code § 1793.2, subd. (a)(3). Specifically, while only Civ. Code, § 1793.2, subd. (d)(2) uses the specific term “new motor vehicle,” the entire section broadly applies to “consumer goods” and “buyer[s]” as defined in Civ. Code § 1791. “Consumer goods” is defined in relevant part as “any new product or part thereof that is used, bought, or leased for use primarily for personal, family, or household purposes, except for clothing and consumables.” (Civ. Code, § 1791, subd. (a), italics added.) “Buyer” is defined in relevant part as “any individual who buys consumer goods from a person engaged in the business of manufacturing, distributing, or selling consumer goods at retail.” (Civ. Code, § 1791, subd. (b), italics added.) Based on these definitions, the Legislature plainly intended for the remedies provided under Civ. Code § 1793.2 to apply to buyers of new products, not used products. Because the “good” at issue in Plaintiff’s SBA claims here is a motor vehicle, Plaintiff necessarily must demonstrate that the Vehicle was a “new motor vehicle” to qualify for the requested protections under the SBA. Common sense requires that the definition of “new motor vehicle” discussed in Rodriguez should be consistently applied across the entire statutory section where motor vehicles are involved.

Further,

even if the California Supreme Court’s reasoning in Rodriguez does not specifically extend to Plaintiff’s second and third causes of action, Plaintiff still cannot demonstrate that her Vehicle was a “new” vehicle, given the undisputed factual record discussed supra. (See supra, Section I.A; Rodriguez, supra, 17 Cal.5th at p. 202 [“The Legislature has shown it knows how to legislate on “used” products (§ 1795.5), and it has employed clear language when it wants to make a “used” product subject to the warranty protections that

apply to the product when new..."].)

Alternatively, Plaintiff

argues that Civ. Code § 1795.5 extends the scope of potential liability under Civ. Code § 1793.2 because Plaintiff purchased her Vehicle “in a sale in which an express warranty is given...” (Civ. Code § 1795.5.) Plaintiff argues that FCA concedes that an original/unexpired warranty, which is attached to the FAC, was given to Plaintiff at re-sale. (Opp., at p. 11.) Even so, the exception for “used” goods under Civ. Code § 1795.5 does not apply to all manufacturers, only to a “distributor or retail seller of used consumer goods.” (Civ. Code § 1795.5.) For example, in *Kiluk*, the court held that a vehicle manufacturer could be liable under Civ. Code § 1793.2 in connection with a pre-owned vehicle because it had partnered with a dealership to sell the vehicle and was thus subject to the obligations of a retailer under Civ. Code § 1795.5. (*Kiluk*, supra, 43 Cal.App.5th at p. 340.) In other words, in order for Plaintiff’s SBA claims to fall within the scope of Civ. Code § 1795.5, Plaintiff must be able to demonstrate that FCA was acting as a seller when it issued the express warranty in connection with her Vehicle.

Here,

however, Plaintiff fails to submit sufficient, non-speculative evidence demonstrating that FCA partnered with the BBA to sell the Vehicle. FCA is not identified as a party to the Sale Contract. (Tremonti Decl., ¶ 5, Exh. 2.) Plaintiff also concedes that she did not pay any money directly to FCA in connection with the sale of the Vehicle. (Ibid.) Meanwhile, Plaintiff offers no legal analysis on the existence of an agency or “partnership” relationship between FCA and BBA to suggest that FCA was involved in the sale transaction at issue. At most, Plaintiff infers that BBA was an agent of FCA for purposes of the sale transaction simply because BBA participated in FCA’s CPO certification program. (Lister Decl., Exh. 1 [confirming Plaintiff’s Vehicle had CPO status].) However, Plaintiff fails to identify any legal authority to support her inference that such a program gives rise to an agency relationship with a dealership such that a vehicle manufacturer can be deemed a seller as a matter of law.

Accordingly,

the Court finds that Plaintiff has failed to raise a triable factual dispute regarding the application of Civ. Code § 1795.5 to her two remaining SBA claims. The second and third causes of action must fail because the Vehicle at issue is not a new product. As no remaining SBA claim survives,

Plaintiff's request for civil penalties must also fail.

Therefore,

FCA's Motion for Summary Judgment is GRANTED in its entirety.

II. EVIDENTIARY OBJECTIONS

Defendant

objects to the Declaration of Greer Williams (Nos. 1-14). The following evidentiary objections are SUSTAINED: 1 and 12 (lacks foundation; speculative); 6-8 (relevance); and 11 (improper legal conclusion). The following objections are OVERRULED: 2-5, 9-10, 13-14.

Defendant

objects to Plaintiff's Exhibit 1 in its entirety. The objection is OVERRULED.

Defendant

objects to the Declaration of Jacob Lister (Nos. 1-3). The following evidentiary objections are SUSTAINED: 1 (mischaracterizes evidence, speculative); and 2-3 (lack of foundation; relevance).

Defendant FCA US, LLC to serve notice of

ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel

and posted to court's website on 7/31/26 at 1